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AS AMENDED

By: Goodwin of the Senate

Lowe (Jason) of the House

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

Section 2621. There is hereby created the Tulsa Reconciliation Education and Scholarship Program. The purpose of the program is to provide a scholarship award to residents of the Tulsa School District, which was greatly impacted both socially and economically by the civil unrest that occurred in the City of Tulsa during 1921. Beginning with the 2002-2003 school year, or as soon thereafter as practicable, and subject to the availability of funds, the program shall each year make scholarships available to as many students as feasible, up to three hundred scholarships, to qualified residents

1 of the Tulsa School District, and to qualified students of any other
2 public school district in the United States who are direct lineal
3 descendants as defined in subsection C of Section 2623 of this title
4 and who meet the criteria set forth in Sections 2623 and 2624 of
5 this title, and who are intending to pursue studies at an
6 institution of higher education in The Oklahoma State System of
7 Higher Education or a private institution of higher education, in
8 this state or who are intending to pursue studies in a postsecondary
9 career and technology education program in this state. The
10 scholarship shall be an amount ~~of not more than~~ not exceeding the
11 equivalent of the average amount of resident tuition for which an
12 eligible Tulsa Reconciliation Education and Scholarship Program
13 participant enrolled at an institution of higher education in The
14 Oklahoma State System of Higher Education or a postsecondary career
15 and technology education program, whichever is applicable, is
16 obligated to pay. The scholarship shall be paid as provided for in
17 Section 2625 of this title. The further purpose of this program is
18 to establish and maintain a variety of educational support services
19 whereby ~~residents~~ students who qualify for the program will be
20 prepared for success in postsecondary endeavors.

21 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2623, is
22 amended to read as follows:

23 Section 2623. A. Subject to the availability of funds, the
24 Oklahoma State Regents for Higher Education may annually award a

1 maximum of three hundred full-time-equivalent scholarships for the
2 Tulsa Reconciliation Education and Scholarship Program to residents
3 of the Tulsa School District and to qualified students of any other
4 public school district in the United States who are direct lineal
5 descendants as defined in subsection C of this section and who are
6 intending to pursue studies at an institution of higher education in
7 The Oklahoma State System of Higher Education or a private
8 institution of higher education in this state or who are intending
9 to pursue studies in a postsecondary career and technology education
10 program in this state.

11 B. To qualify for a scholarship, the family income of an
12 applicant shall ~~satisfy the following criteria:~~

13 ~~1. The family income of the applicant,~~ from taxable sources is
14 ~~not more than Seventy Thousand Dollars (\$70,000.00),~~ not exceed One
15 Hundred Twenty-five Thousand Dollars (\$125,000.00) per year. There
16 shall be no family income limit for an applicant who is a direct
17 lineal descendant as defined in subsection C of this section. The
18 Free Application for Federal Student Aid (FAFSA) form may be used to
19 verify family income.

20 ~~2. The applicant attended a Tulsa public school where seventy-~~
21 ~~five percent (75%) or more of the students enrolled in the school~~
22 ~~qualify for the free and reduced lunch program; and~~

23 ~~3. The applicant resides in a census block area within the~~
24 ~~Tulsa School District where thirty percent (30%) or more of the~~

1 ~~residents are at or below the poverty level established by the~~
2 ~~United States Bureau of the Census.~~

3 C. The State Regents ~~may consider as a~~ Regents' selection
4 process shall factor, ~~when determining the order of preference of~~
5 give first priority status to applicants, ~~whether~~ an applicant who
6 is a direct lineal descendant of a person who resided in the
7 Greenwood Area in the City of Tulsa between April 30, 1921, and June
8 1, 1921, **and was a victim of the 1921 Tulsa Race Massacre.** ~~If the~~
9 ~~Regents use~~ Use of descent as a preference factor, ~~it~~ shall be
10 applied to all applicants regardless of race. The applicants shall
11 be required to present verifiable documentation of their lineage.
12 ~~The Oklahoma Historical Society~~ An organization or individual
13 engaged in genealogy and research of descendants and history of the
14 1921 Tulsa Race Massacre and Greenwood Area shall verify the
15 authenticity and accuracy of the documentation submitted by an
16 applicant and shall ~~establish~~ confirm the boundaries of the
17 Greenwood Area. Verifiable documentation shall include, but not be
18 limited to, the following:

19 1. Family records including family bibles, vital records,
20 correspondence, memoirs, journals, diaries, unrecorded deeds,
21 diplomas, certificates, or testimonials;

22 2. Public records including censuses, government records,
23 military records, pensions, land bounty records, passport
24 applications, passenger lists, original grants, naturalization or

1 immigration records, records of entry, or state, province, or local
2 records; or

3 3. Institutional records including church records, cemetery
4 records and inscriptions, education institutions, insurance records,
5 or societies and fraternal organizations.

6 D. The State Regents shall promulgate rules establishing the
7 application requirements for the program and the system for
8 evaluating applications based on the preference factors. The
9 application form shall include a small outlined box graphic,
10 followed by the following language: "Mark the box if you are a
11 direct lineal descendant of a **victim** greatly impacted socially and
12 economically during the 1921 Tulsa Race Massacre who resided in the
13 Greenwood Area of Tulsa, Oklahoma, between April 30, 1921, and June
14 1, 1921."

15 E. Applicants shall also meet the eligibility criteria
16 established in Section 2624 of this title.

17 F. ~~The Oklahoma~~ In addition to the scholarships authorized
18 pursuant to Section 2621 of this title and this section, the State
19 Regents ~~for Higher Education~~ shall also be authorized to annually
20 award scholarships for the Tulsa Reconciliation Education and
21 Scholarship Program to two students at each of the high schools in
22 the Tulsa School District for the purpose of preserving awareness of
23 the history and meaning of the civil unrest that occurred in Tulsa
24

1 in 1921. The following provisions shall apply to the ~~scholarship~~
2 scholarships provided in this subsection:

3 1. Notwithstanding the provisions of subsection B of this
4 section, eligibility for the scholarships awarded pursuant to this
5 subsection shall be:

- 6 a. enrollment in the appropriate high school,
- 7 b. family income of the applicant from taxable sources
8 not to exceed ~~Seventy Thousand Dollars (\$70,000.00)~~
9 One Hundred Twenty-five Thousand Dollars (\$125,000.00)
10 per year. There shall be no family income limit for
11 an applicant who is a direct lineal descendant as
12 defined in subsection C of this section,
- 13 c. made as provided for in subsection C of this section,
- 14 d. satisfaction of the criteria specified in Section 2624
15 of this title, and
- 16 ~~d.~~ e. any other relevant criteria determined by the
17 Oklahoma State Regents for Higher Education;

18 2. The State Regents shall involve the administration of the
19 Tulsa School District and a community advisory committee in the
20 selection process. The community advisory committee shall be
21 comprised of seven (7) members appointed by the Chancellor of Higher
22 Education. The community advisory committee shall be comprised of:

- 23 a. the President of Langston University or his or her
24 designee,

- 1 b. the Superintendent of Tulsa Public Schools or his or
2 her designee,
- 3 c. two members of the Legislature representing the
4 Greenwood area in the City of Tulsa, Oklahoma, or
5 their designees,
- 6 d. two descendants of socially and economically adversely
7 impacted persons who resided in the Greenwood Area in
8 the City of Tulsa, Oklahoma, between April 30, 1921
9 and June 1, 1921, and
- 10 e. a citizen with ties to the historic Greenwood
11 community who may be engaged in faith-based,
12 education, or social, business, or advocacy work.

13 The President of Langston University, or his or her designee,
14 shall be responsible for coordinating with the community advisory
15 committee and shall submit to the Chancellor of Higher Education a
16 list of proposed committee members for review and approval. The
17 community advisory committee shall review scholarship applications
18 and make recommendations for scholarship recipients and scholarship
19 award amounts. The State Regents shall select scholarship
20 recipients from the list of recommendations provided pursuant to
21 this paragraph;

22 3. The award shall be limited to a one-year full-time-
23 equivalent period. Following successful completion of such award,
24 recipients who meet the criteria provided in subsection B of this

1 section shall be eligible to apply and be considered for continued
2 participation in the full Tulsa Reconciliation Education and
3 Scholarship Program. Any student subsequently awarded such
4 scholarship shall have the duration of the scholarship provided
5 pursuant to this subsection deducted from the limits set in
6 subsection D of Section 2625 of this title;

7 4. The award may only be funded with state funds appropriated
8 to the Tulsa Reconciliation Education and Scholarship Trust Fund and
9 income therefrom, and shall be made subject to the availability of
10 such funds; and

11 5. The awards made pursuant to this subsection shall be
12 included within the maximum number of scholarships specified in
13 subsection A of this section.

14 SECTION 3. AMENDATORY 70 O.S. 2021, Section 2625, is
15 amended to read as follows:

16 Section 2625. A. Subject to the availability of funds, an
17 amount of not more than the equivalent of the average amount of
18 resident tuition for which an eligible Tulsa Reconciliation
19 Education and Scholarship Program participant enrolled in an
20 institution in The Oklahoma State System of Higher Education, or
21 enrolled in a postsecondary career and technology education program,
22 whichever is applicable, is obligated to pay shall be awarded by
23 allocation from the Tulsa Reconciliation Education and Scholarship
24 Trust Fund.

1 B. Subject to the availability of funds, for each eligible
2 Tulsa Reconciliation Education and Scholarship Program participant
3 enrolled at a private institution of higher education, the Oklahoma
4 State Regents for Higher Education shall award from the Tulsa
5 Reconciliation Education and Scholarship Trust Fund an amount of not
6 more than the equivalent of the average amount of resident tuition
7 for which the participant would be eligible if the participant were
8 enrolled in a program at an institution of The Oklahoma State System
9 of Higher Education.

10 C. Subject to the availability of funds, an amount of not more
11 than the equivalent of the average amount of tuition for which an
12 eligible Tulsa Reconciliation Education and Scholarship Program
13 participant enrolled in a postsecondary career and technology
14 education program is obligated to pay shall be awarded by allocation
15 from the Tulsa Reconciliation Education and Scholarship Trust Fund.
16 The allocation shall not exceed the amount a participant would have
17 received for enrollment at a two-year institution within The
18 Oklahoma State System of Higher Education.

19 D. Benefits awarded under the Tulsa Reconciliation Education
20 and Scholarship Program shall not be allowed for courses or other
21 postsecondary units taken in excess of the requirements for
22 completion of a baccalaureate program or taken more than five (5)
23 years after the student's first semester of participation in the
24 program. The Oklahoma State Regents for Higher Education may award

1 the Tulsa Reconciliation Education and Scholarship Program benefits
2 for courses of postsecondary units taken more than five (5) years
3 after the student's first semester of participation in the program
4 only in hardship circumstances. No Tulsa Reconciliation Education
5 and Scholarship Program participant may receive benefits beyond a
6 cumulative time period of five (5) years. The Oklahoma State
7 Regents for Higher Education may establish a maximum limit on the
8 number of courses or other postsecondary units to which Tulsa
9 Reconciliation Education and Scholarship Program benefits will
10 apply. An award to an eligible Tulsa Reconciliation Education and
11 Scholarship Program participant who is enrolled in a postsecondary
12 career and technology education program may be used to pay for both
13 career and technology education and college work if both are
14 required by the program.

15 E. Benefits awarded under the Tulsa Reconciliation Education
16 and Scholarship Program shall be awarded to not more than ~~300~~ three
17 hundred (300) eligible participants annually, subject to the amount
18 of funds available for the program and the number of eligible
19 participants. Subject to the provisions of subsection F of this
20 section, if funds are not sufficient to provide awards for the
21 maximum number of eligible participants each year, the Oklahoma
22 State Regents for Higher Education shall make awards on the basis of
23 need. The Oklahoma State Regents for Higher Education shall take
24 into consideration other grants and scholarships received by an

1 eligible student when making awards. If ~~an eligible student~~
2 ~~receives other grants and scholarships~~ scholarship award funds
3 remain after payment of resident tuition, the benefits awarded under
4 the Tulsa Reconciliation Education and Scholarship Program may cover
5 any additional educational costs not covered by the other grants and
6 scholarships including, but not limited to, fees, required textbooks
7 or materials, and room and board. If the family of an eligible
8 Tulsa Reconciliation Education and Scholarship Program participant
9 may qualify for the federal Hope Scholarship or Lifetime Learning
10 tax credit as provided for in the Taxpayer Relief Act of 1997, P.L.
11 No. 105-34, the participant may elect to use the award allowed by
12 this section to pay for fees, required textbooks or materials and,
13 if any funds remain, to pay for room and board instead of resident
14 tuition.

15 F. The Oklahoma State Regents for Higher Education may, at the
16 time an award is made on behalf of a Tulsa Reconciliation Education
17 and Scholarship Program participant, set aside in the Tulsa
18 Reconciliation Education and Scholarship Trust Fund funds for the
19 full commitment made to such Tulsa Reconciliation Education and
20 Scholarship Program participant. For all academic years,
21 participants who have previously received awards under the
22 provisions of the Tulsa Reconciliation Education and Scholarship Act
23 and who have continued at all times to fulfill the requirements for
24 eligibility to receive awards provided pursuant to this program

1 shall be given ~~an absolute~~ priority for continued financial support
2 by the Tulsa Reconciliation Education and Scholarship Program
3 superior to any ~~residents~~ students who are applying for such
4 benefits for the first time; provided, however, that scholarship
5 applicants who are direct lineal descendants as defined in
6 subsection C of Section 2623 of this title shall always be given
7 first priority status.

8 SECTION 4. It being immediately necessary for the preservation
9 of the public peace, health, or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

12 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
13 March 4, 2025 - DO PASS AS AMENDED
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